

BENNETT v. MANNING — MASTER EVIDENCE DISTILL

Comprehensive Documentary Record for Multi-Venue Litigation

****Prepared: February 22, 2026****

****For: Petition for Review (WA Supreme Court), Federal § 1983 Complaint, WSBA Complaint, CR 60(b) Motion****

I. CASE OVERVIEW

****Parties:****

- ****Zackariah Jeremiah Bennett**** (DOB 01/07/1981) — Father of T.B., pro se
- ****Kelly J. Bennett (Jovanovich)**** — Mother of T.B.
- ****Melvina Catherine Manning (née Roberson)**** (DOB 05/13/1959) — Maternal grandmother of T.B.
- ****John Arthur Manning**** — Manning's husband
- ****Timothy E. Bennett II (T.B.)**** (DOB 01/11/2007) — Subject child

****Active Case Numbers:****

- 08-3-03956-4 SEA (King County — Original custody, 2008)
- 13-5-00050-3 (Snohomish County — Relinquishment/Adoption, 2013; adoption cause dismissed 2019)
- 22-2-09380-3 (King County — DVPO, 2022)
- 23-2-11352-7 SEA (King County — Civil complaint, 2023)
- 84450-4-I (Division One — DVPO appeal)
- 84951-4-I (Division One — Indigency appeal, PUBLISHED 4/17/2023)
- 87007-6-I (Division One — Civil appeal, opinion 1/26/2026)
- 102950-1 (WA Supreme Court — pending Petition for Review)

****Opposing Counsel:****

- ****O.W. Hollowell & Associates**** (WSBA 9163) — 4471 Tolt Ave, Carnation, WA 98014. Filed original 2008 ex parte order, prepared 2008 Findings
- ****Nancy A. Gass**** (WSBA 49685) — Hollowell & Associates. Current counsel for Manning. Prepared 2023 Response, 2024 Summary Judgment order, contradictory filings
- ****Mark M. Demaray, Inc. P.S.**** — 145 Third Ave South, Suite 201, Edmonds, WA 98020. Prepared 2013 Communication Agreement and Relinquishment

II. THE CONSPIRACY — DOCUMENTED IN THEIR OWN WORDS

A. The Origin: MSN Chat Logs (June 2, 2008)

****Source:**** Email from John Manning (adubbsworld@hotmail.com) to Melvina, sent Monday June 02, 2008 at 12:10 PM. Subject: "Zack." Contains chat transcripts between "Magik" (Zack) and "Princess Kelly" (Kelly Bennett).

****Context:**** Zack was on probation in Colorado. Manning had filed the ex parte restraining order on May 28-29, 2008 (three days earlier). Kelly had signed a Joinder in that motion from Manning's home in Carnation. This chat was sent by John Manning to Melvina — documenting that they were monitoring Zack's communications.

****Critical Admissions (Zack's words, showing duress and coercion):****

- "the court order was bs thing to do. court=jail for me. mom wasn't thinking at all."
- "it has been stated that I committed DV and felony drug use while on probation." *(highlighted — false statement in court record)*
- "that statement CANNOT be made record!!!!!!!!!!!!" / "it has to dissappear!!!!!!!!!!!!"
- "i am fucked if this goes through. i told mom to drop it and i will sign him over till i get to wa"
- "mom has to realize this is about tim and my life, she can have her way without fucking me over."
- "she just got a son back from prison, she doesn't need to send the other one off."
- "i will sign him over till i move to gma's, but this case MUST get dropped. i will sign first. or i don't get to come home and might go to prison."
- "i won't go to a revoke hearing. I WILL RUN." / "and run armed"
- "i will give her custody till WE move to gma carols"
- "i want my bonnie back"

****Critical Admissions (Kelly's words, showing active participation in scheme):****

- "now everything we are doing is for our son" / "not against him"
- "you know that we cant take care of our selfs let alone our son right now"
- "this is the only way to make you realize what is going on what WE are doing wrong"
- "we did this to our self we need to clean up our acts"
- "CHILDREN ARE A PRIVILAGE NOT A RIGHT"
- "you know that anything we do did or have done affect that boy" / "and mom has saved him you know that" / "we would have lost him and you should be kissing her feet for keeping him out of the systeem"
- "we had 2-3 months away from him and we fucked it up"
- "i need you to hunny but call me asap to make sure the plan is finalized" *(highlighted — establishes pre-existing plan)*

****Zack's description of Manning:****

- "i say listen carefully and pay attention. she is devious in her ways."
- "think with your heart, god speaks there. the devil talks to your head."
- "she did worse than carol ever could have with this one."

****What this proves:****

1. Zack signed documents under duress — facing prison revocation if he fought the custody action
2. Kelly was an active participant in the plan from the beginning ("the plan is finalized")
3. Kelly acknowledged both parents' shortcomings but framed Manning's intervention as "saving" T.B.
4. Manning obtained the ex parte order knowing it would create criminal jeopardy for Zack (probation violation)
5. Manning was monitoring communications between Zack and Kelly through John Manning
6. The "abandonment" narrative was manufactured — Zack wanted his son, was coerced into signing
7. Zack explicitly wanted TEMPORARY custody transfer, not permanent relinquishment

B. The Ex Parte Restraining Order (May 29, 2008)

****Source:**** Motion/Declaration for Ex Parte Restraining Order, Case No. 08-3-03956-4 SEA, filed May 29, 2008. Prepared by O.W. Hollowell (WSBA 9163). Signed by Melvina Roberson (Manning) on May 28, 2008 at Carnation, WA.

Page 2 Document Anomaly — Probable Page Swap

****Formatting inconsistency:**** Page 2 lacks two features present on every other page of this filing and every other Hollowell filing in this case:

- No numbered pleading lines (left margin) — present on pages 1, 3, 4
- No O.W. Hollowell & Associates contact block (bottom right) — present on pages 1, 3, 4

****Page 2 contains ALL substantive relief provisions:****

- Grants Manning custody of T.B. during hearing
- Orders show cause on BOTH Kelly and Zack
- Only page applying restraining order to Kelly
- Grants mother "Reasonable unlimited visitation"
- Grants father "None" for visitation
- Orders child support per Washington State Support Schedule

****Three independent legal defects on this document:****

**** (1) Respondent/Joinder Paradox:**** Page 1 captions Kelly as "Respondent" (motion filed against her). Page 4 has Kelly sign "Joinder in Motion" (supporting the motion against herself). Same attorney (Hollowell) prepared both the caption naming Kelly as respondent and the joinder she signed — facial conflict of interest without independent counsel.

**** (2) Subject Matter Jurisdiction:**** An ex parte restraining order (WPF CU 03.0150, RCW 26.10.115) is emergency protective relief. Page 2 orders child support (requiring financial declarations, notice, support

schedule worksheet), permanent visitation schedules, and custody determinations — substantive relief that cannot be adjudicated ex parte without notice to an incarcerated respondent in another state. When default was entered 75 days later without hearing, these "temporary" provisions became permanent by operation of law.

(3) MSN Chat Corroboration: On June 2, 2008 — four days after signing — Kelly tells Zack "this case wont affect you at all" and "you have no limits on seeing time." These statements are flatly inconsistent with filed page 2 granting father "None" for visitation. Either Kelly was deceiving Zack, or she did not know what the filed document contained because the page was swapped after she signed.

Key provisions (as filed):

- Restrains Zack from disturbing peace of Manning, approaching home/work/school, coming within 100 feet
- Restrains BOTH Zack and Kelly from removing children from state
- Grants Manning temporary custody of T.B.
- Father's visitation: **"None."**
- Mother's visitation: **"Reasonable unlimited visitation."**
- Orders child support

Declaration alleges:

- "Respondent's history of drug use, criminal activity and domestic violence" (Section 2.2)
- Injury to prevent: "Physical and emotional harm to Petitioner and to the minor child" (Section 2.1)
- Reason for temporary order: "To establish custody of minor child and prevent irreparable harm" (Section 2.5)

Notice section (Section III):

- "Respondent father out of state and has history of violence-no notice given."
- "Respondent mother joins motion."

Kelly's Joinder: "I, Respondent Kelly J. Bennett, join in this motion." Signed at Carnation, Washington on May 28, 2008.

What this proves:

1. Kelly physically at Manning's home in Carnation when this was filed
2. Kelly joined Manning's motion against Zack — co-conspirator from day one
3. Manning got "unlimited visitation" for Kelly while giving Zack "None"
4. No notice to Zack because he was "out of state" (in Colorado, on probation/incarcerated)
5. Hollowell prepared everything — same firm that would later file contradictory findings

C. The 2008 Manning Declaration (November 26, 2008)

Source: Declaration of Melvina Manning, Case No. 08-3-03956-4, prepared by O.W. Hollowell & Associates, signed under penalty of perjury.

Paragraph 4: "Zackariah has not seen his son since March 2008 nor made any attempt to help with Timothy's Support. Starting a couple months ago Zackariah began calling his son on the telephone a couple times per week."

Paragraph 9: "Timothy doesn't talk about his own parents... seems a little uncertain about how they are when they call him on the telephone."

What this proves:

- Manning admits under oath that Bennett was calling T.B. multiple times weekly in Sept/Oct 2008
- Nine days later, court enters findings of "abandonment" — in the same case
- Cannot "abandon" a child while calling them multiple times per week
- RCW 26.27.021(1) requires intent to "forego parental rights" — regular calls prove opposite intent

D. The 2008 Findings of Fact (December 5, 2008)

Source: Findings of Fact and Conclusions of Law, Case No. 08-3-03956-4 SEA, prepared by O.W. Hollowell & Associates, signed by judge December 5, 2008 — same day as Manning Declaration.

THE BINARY IMPOSSIBILITY (same document, same date):

Page	Finding	Implication
3	§2.4 "[X] children have been abandoned "	No intent to exercise parental rights
3	§2.7 "[X] Parent's abandoned child to Petitioner"	No intent to exercise parental rights
4	§2.9 "[X] Willful abandonment ... Father's visitation: None."	No intent to exercise parental rights
5	§2.11 "[X] Both parents threaten to remove child from State of Washington"	Active assertion of parental rights requiring restraining order

A person cannot simultaneously abandon a child AND threaten to remove them. Abandonment means no intent to exercise parental rights. Threatening removal means aggressively exercising parental rights. Both boxes checked. Same document. Same attorney. Same judge.

Additional context: Default judgment entered 8/12/2008 against both parents. Bennett was served 5/30/2008 while incarcerated in Adams County, Colorado. Default entered less than 75 days later. No hearing. No counsel. No ability to respond from jail.

E. The Communication Agreement (2013)

Source: Agreement and Order for Communication and Contact, Superior Court of Washington for Snohomish County, In Re the Adoption of Timothy E. Bennett II (DOB 01/11/2007). Prepared by Law Offices of

****Critical provisions:****

- Section 1.1: "This agreement regarding communication with or contact between the adopted child, the adoptive parents and the birth parent(s) ****is not legally enforceable unless the terms of the agreement are set forth in a written court order signed by a judge.****"
- Section 4.2: "in no event shall the violation of the terms of the agreement constitute a basis for vacating or setting aside the adoption."
- Section 3.2: Each parent whose rights have not been terminated is a party to the agreement
- Section 3.3: Each party has been represented by or had opportunity to consult with a lawyer

****Signature page (page 4):****

- "DONE IN OPEN COURT this ___ day of ___, 2013" — ****DATE LINES APPEAR BLANK****
- "JUDGE/COURT COMMISSIONER" — ****SIGNATURE LINE APPEARS UNSIGNED****
- Lines for "Birth Father," "Adoptive Mother," "Adoptive Father" — unsigned on this copy

****What this proves:****

1. The agreement was designed as a trap — Section 1.1 says it's unenforceable without court order, Section 4.2 says violations can't undo the adoption
2. If the judge never signed, the agreement was never enforceable by its own terms
3. Manning and Demaray knew this when presenting it to Bennett as part of the adoption package
4. Bennett was induced to relinquish based on promises of continued contact that were unenforceable
5. This is textbook fraud in the inducement — inducing reliance on promises the promisor knows cannot be enforced

F. The 2013 Relinquishment Order (March 18, 2013)

****Source:**** Order of Relinquishment, Snohomish County Superior Court, Cause No. 13-5-00050-3. Prepared by Mark M. Demaray.

- Terminates parent-child relationship
- Grants custody to John Arthur Manning and Melvina Catherine Manning
- References "Pre-Post Placement Report" by Joan Ward, MSW, LICSW
- Adoption cause subsequently ****dismissed in 2019**** for lack of progress — six years, no adoption completed

G. Kelly Jovanovich Facebook Admission (November 25, 2022)

****Source:**** Facebook Messenger screenshots between Jessica Bennett (Zack's wife) and Kelly Jovanovich, November 25, 2022.

****Kelly's statements:****

- "That's very good of her as ****he is never to see Tim.**** Yes it was."
- "Tim is the only child in his blood line to not be beaten by his father and because of that ****he is never to see him.**** I have suffered not seeing him as ****Mel and John are keeping Tim from me and I still have rights... ****"

****Jessica's context:**** "Nobody but melvina, John, misty and josh has been able to see him now josh can't and being pushed away because he was talking to zack about Tim meeting his brother and sister and melvina found out and put a restraining order on zack with a hand written statement from you?"

****What this proves:****

1. Kelly confirms "he is never to see Tim" was the arrangement — permanent exclusion
2. Kelly reveals Manning is also excluding HER despite Kelly "still hav[ing] rights"
3. The DVPO was triggered by someone facilitating sibling contact
4. Manning used Kelly's handwritten statement to get the protection order
5. Admissible as co-conspirator statement under FRE 801(d)(2)(E)

H. Manning's 2023 Response — Internal Contradiction

****Source:**** Response to Complaint, Case No. 23-2-11352-7, filed 9/19/2023 by Nancy A. Gass, Hollowell & Associates. Signed under penalty of perjury by Manning.

****Page 2, lines 9-10:**** "Mr. Bennett ****never made any attempt**** to contact TB from 2008 until June 23, 2019."

****Page 6, lines 16-18:**** "Between 2008 and 2019, Mr. Bennett never reached out to TB to try to build a relationship with him... ****one or two letters during the roughly 4 years he was in prison.****"

****Same document admits letters while claiming "never made any attempt."**** These statements are mutually exclusive in a single sworn filing.

****What the Response omits:****

- 2008: Phone calls Manning admitted in her own declaration
- 2010-2011: Facebook-documented phone call schedules
- June 12, 2011: Video visit at Manning residence (Manning filmed it)
- 2012: In-person visit at Manning residence
- 2012-2015: Read-to-Me-Daddy recordings, Angel Tree gifts (Manning acknowledged receipt)
- 2013: Communication Agreement
- 2015-2018: Ongoing Facebook discussions about T.B.
- 2017: Manning babysat Zack's son A.B. while concealing A.B.'s identity from T.B.

I. Manning's DVPO Declaration (August 1, 2022)

****Source:**** Declaration of Melvina Catherine Manning, Case No. 22-2-09380-3. Signed under penalty of perjury at Carnation, WA on 8/01/2022.

- Manning identifies herself as "Parent of Zackariah Bennett, grandparent of Timothy Bennett"
- Claims T.B. "requested that the initial harassment order be filed on June 21, 2022"
- Describes two incidents: June 23, 2019 and June 1/12, 2022
- Claims T.B. "thought he was a kidnapper" on first visit
- Describes second visit where T.B. "came up to the front door, and politely told him 'I don't want to see you at this time'"
- Claims T.B. had "a panic attack" hours later

J. T.B.'s Declaration (August 1, 2022)

****Source:**** Declaration of Timothy Edward Bennett, Case No. 22-2-09380-3. Signed under penalty of perjury at Carnation, WA on 8/01/2022. T.B. was age 15.

- States "I do not want to see or speak with my father (Zackariah Bennett)"
- Describes June 23, 2019 incident: "I thought he was a kidnapper and I felt threatened"
- Describes June 1/12, 2022 incident: "I came up to the front door, and politely told him 'I don't want to see you at this time.' And he responded by becoming agitated and aggressive, and demanding I meet my siblings."
- "I have felt threatened and I've been paranoid that he may show up again"
- "I stand with my Nana, and I request that a protection order is issued so I feel safe at home and at school."

****What this proves in context:****

1. T.B. had no independent knowledge of who Bennett was — "thought he was a kidnapper" in 2019
2. This is the product of 11 years of alienation — T.B. doesn't recognize his own father
3. T.B.'s declaration closely mirrors Manning's declaration — same language, same framing
4. T.B. says he "politely told him" he didn't want contact, then Manning/Court claims "harassment"
5. The DVPO was triggered by Bennett trying to facilitate sibling contact — exactly what Kelly confirmed

III. DOCUMENTED TIMELINE OF CONTACT (Contradicting "11 Years of Silence")

Date Event Source
----- ----- -----
Mar 2008 T.B. placed with Manning Court records
May 28, 2008 Manning files ex parte order; Kelly joins from Manning's home 08-3-03956-4
May 30, 2008 Bennett served while incarcerated in Adams County, CO Court records
June 2, 2008 MSN chat logs show Bennett discussing case with Kelly John Manning email
Aug 12, 2008 Default judgment against both parents — no hearing, no counsel 08-3-03956-4

Sept-Oct 2008	Bennett calling T.B. "couple times per week"	Manning Declaration ¶4
Nov 26, 2008	Manning admits calls in sworn declaration	Manning Declaration
Dec 5, 2008	Court enters "abandoned" finding despite admitted calls	Findings of Fact
2010-2011	Phone call schedules documented on Facebook	Exhibit A
June 12, 2011	Video visit at Manning residence — Manning films it; T.B. identifies "daddy one" car	Video evidence
2012	In-person visit; discussions of T.B.'s mental health	Exhibit A
2012-2015	Read-to-Me-Daddy recordings, Angel Tree gifts	Exhibit A (Manning acknowledged receipt)
2013	Communication Agreement — Snohomish court found contact "in best interest"	13-5-00050-3
2013	Relinquishment Order signed	13-5-00050-3
2015	Bennett confronts Manning: "fool to sign those papers and believe in the promises"	Facebook messages
2015-2018	Ongoing Facebook discussions about T.B.	Exhibit A
2017	Manning babysits Bennett's son A.B., conceals A.B.'s identity from T.B.	Evidence
2019	Adoption cause dismissed for lack of progress	13-5-00050-3
June 23, 2019	Bennett visits Manning home; T.B. "thought he was kidnapper"	DVPO declarations
June 2022	Bennett visits again; T.B. says "I don't want to see you at this time"	DVPO declarations
Nov 25, 2022	Kelly admits "he is never to see Tim" arrangement	Facebook screenshots
Sept 19, 2023	Manning swears "no attempt to contact" while admitting letters in same filing	Response, 23-2-11352-7

IV. TABLE 1: RESPONDENT'S DOCUMENTED MISCONDUCT

#	Date	Act	Document/Source	Contradicted By
1	5/28/2008	Kelly joins Manning's ex parte motion from Manning's home in Carnation	Ex Parte Motion p.4, 08-3-03956-4	Kelly's 2022 admission that "we had 2-3 months away from him and we fucked it up" — acknowledges joint scheme
2	6/2/2008	John Manning emails chat logs to Melvina; Kelly discusses "the plan"	Email from adubbsworld@hotmail.com	Demonstrates surveillance and coordinated action
3	11/26/2008	Manning swears Bennett calls T.B. "couple times per week"	Manning Declaration ¶4, 08-3-03956-4	Finding of "abandoned" entered 9 days later in same case
4	12/5/2008	Hollowell submits Findings checking BOTH "abandoned" AND "threaten to remove child"	Findings pp.3,5, 08-3-03956-4	These are mutually exclusive — legal impossibility in single document
5	2013	Communication Agreement presented as inducement for relinquishment; agreement says on its face it's unenforceable without court order; judge signature line appears blank	Comm. Agreement, 13-5-00050-3	Section 1.1 of same document; Section 4.2 bars using violations to challenge adoption
6	2013-2019	Adoption never completed; cause dismissed for lack of progress	13-5-00050-3 docket	Courts continue treating relinquishment as valid permanent termination

| 7 | 2017 | Manning babysits A.B. (Bennett's younger son), conceals A.B.'s identity from T.B. | Evidence | Active alienation — preventing siblings from knowing each other |

| 8 | 9/19/2023 | Manning swears "no attempt to contact" (p.2) while admitting "one or two letters" (p.6) in same filing | Response, 23-2-11352-7 | Internal contradiction in single sworn document; omits 2011 visit she filmed |

| 9 | 9/19/2023 | Manning's Response omits 2008 calls, 2011 video visit, 2012 visit, recordings, gifts, Communication Agreement, Facebook correspondence | Response, 23-2-11352-7 | All documented in court records and Exhibit A |

| 10 | 11/25/2022 | Kelly admits "he is never to see Tim" arrangement | Facebook screenshots | Contradicts court's "abandonment" narrative — exclusion was imposed, not chosen |

| 11 | 11/25/2022 | Kelly reveals Manning "keeping Tim from me and I still have rights" | Facebook screenshots | Manning excluding even cooperating co-conspirator |

| 12 | Post-2013 | Manning files for child support twice after relinquishment (subsequently reversed) | Court records | Cannot claim parental rights terminated AND collect parental support |

| 13 | 6/21/2024 | Gass tells Supreme Court civil evidence "not relevant" to DVPO | Filing 102950-1 | Gass tells Superior Court 7 days later (6/28/2024) that DVPO adjudicated "all" civil issues |

| 14 | 6/28/2024 | Gass argues collateral estoppel based on DVPO | 23-2-11352-7 | Her own filing 7 days prior said civil evidence irrelevant to DVPO — contradictory positions |

| 15 | 4/16/2024-ongoing | Manning fails to respond to any discovery requests | Motion to Compel, 5/6/2024, 23-2-11352-7 | Summary judgment granted with discovery outstanding; perjured statements never tested |

| 16 | 2/1-2/5/2024 | Gass receives video of 6/12/2011 visit, photos, Exhibit A via discovery; personally requests format changes and access | Email chain, 23-2-11352-7 | Five months before summary judgment, Gass possessed evidence disproving "no contact" narrative she would advance |

| 17 | 4/9/2024 | Bennett notifies Gass in writing that Manning falsified court documents prepared by her firm | Email to Gass | Gass takes no remedial measures per RPC 3.3(b); moves for summary judgment 2.5 months later |

| 18 | 7/9/2022 | Manning produces 93-second phone recording of Ring camera monitor instead of original footage; Gass admits "her system deletes videos every 30 days" | Email chain, 22-2-09380-3 discovery | Spoliation of evidence during active DVPO litigation; selective preservation of only favorable portion |

| 19 | 5/28-29/2008 | Page 2 of ex parte order lacks pleading numbers and firm contact block present on all other pages; contains all substantive relief (custody, support, visitation "None"); Kelly captioned as Respondent yet signs Joinder | 08-3-03956-4 pp.1-4; MSN chat 6/2/2008 | Kelly's chat statements ("no limits on seeing time") inconsistent with filed page 2; formatting anomaly consistent with page substitution between signing (5/28) and filing (5/29) |

V. TABLE 2: PRIMA FACIE JUDICIAL ERRORS

#	Date	Error	Rule Violated	Document
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| 1 | 8/12/2008 | Default judgment against incarcerated person; no counsel, no hearing; internally contradictory findings | Due Process (5th/14th Amend); CR 55 | 08-3-03956-4 |

| 2 | 2022 | DVPO issued under RCW 7.105 (effective 7/1/2022) for June 2022 conduct | Ex post facto; RCW 26.50 was governing law | 22-2-09380-3 |

| 3 | 2022 | DVPO issued despite judge finding intent to harass NOT present | RCW 7.105.010 requires intent | VRP 22-2-09380-3 |

| 4 | 4/18/2024 | Denied judicial notice of statutory effective dates in DVPO appeal | ER 201(d) — "shall" is mandatory | 84450-4-I |

| 5 | 2024 | Denied judicial notice of Gass's contradictory filings | ER 201(d) — mandatory | 23-2-11352-7 |

| 6 | 2024 | Summary judgment order emailed to bailiff without service on appellant | CR 56; Due Process | 23-2-11352-7 |

| 7 | 7/2/2024 | Denied Motion to Strike False Statements and Motion for Sanctions — no findings | CR 11; Due Process | 23-2-11352-7 |

| 8 | 7/3/2024 | Summary judgment granted: (a) while discovery outstanding; (b) one day after denying motion to strike; (c) order drafted by opposing counsel; (d) doesn't address fraud claims | CR 56(f); CR 56(e); Due Process | 23-2-11352-7 |

| 9 | 2024-2025 | Denied transcript funding, violating published precedent *Bennett v. Manning* 84951-4-I (4/17/2023) | RAP 15.2(c); Published precedent | 87007-6-I |

| 10 | 12/1/2025 | Manning ignores mandatory order to respond; court rules in her favor anyway | CR 8(d) deemed admission | 87007-6-I |

| 11 | 1/26/2026 | Opinion finds "no attempt to contact" 2008-2019 despite admitted Exhibit A | Summary judgment standard — view evidence in light most favorable to nonmoving party | 87007-6-I |

| 12 | 2024-2026 | Ignored nine judicial notice requests re: court record contradictions | ER 201(d) — "shall" mandatory | 87007-6-I |

| 13 | 2/18/2026 | Denied reconsideration without explanation — three factual impossibilities unaddressed | RAP 12.4 | 87007-6-I |

| 14 | 5/29/2008 | Ex parte order adjudicates child support, permanent visitation, and custody without notice to incarcerated respondent; exceeds scope of emergency protective relief | RCW 26.10.115; Due Process | 08-3-03956-4 |

VI. THE PUBLISHED PRECEDENT THEY VIOLATED

****Case:**** *Manning v. Bennett*, No. 84951-4-I (Div. One, April 17, 2023)

****Per Curiam**** — Judges Dwyer, Coburn, Andrus

****Holding:**** Trial court erred by:

1. Not determining Bennett's indigency or entering findings as required by RAP 15.2(c)
2. Deciding the ultimate issue of entitlement to public expense review — a question RAP 15.2(c) expressly reserves for the Supreme Court

****"We reverse and remand to the trial court for further proceedings consistent with this opinion."****

****Subsequent violation:**** In 87007-6-I, the same Division One penalized Bennett for not having the transcript that the trial court refused to fund in violation of this very precedent. The Court of Appeals issued binding instructions, the trial court ignored them, and the Court of Appeals then held the consequences against Bennett.

VII. THE SUMMARY JUDGMENT ORDER (July 3, 2024)

****Source:**** Order Granting Defendant's Motion for Summary Judgment, Case No. 23-2-11352-7, Judge Jaime Hawk, July 3, 2024. Presented by Nancy A. Gass (WSBA 49685), O.W. Hollowell & Associates.

****The order states:****

- "no genuine issues of material fact"
- Bennett "has no lawful basis or authority as an individual to bring a criminal prosecutorial action"
- "the facts are undisputed that the Plaintiff does not have any legal parental rights to be interfered with, as these were previously terminated by the Snohomish County Superior Court in 2013"
- "Any other issues presented in Mr. Bennett's complaint have been adjudicated previously in court or are additional criminal charges the Plaintiff wishes to bring"

****Errors in this order:****

1. ****Drafted by opposing counsel**** — Gass prepared the order, Judge Hawk signed it verbatim
2. ****Signed one day**** after denying Bennett's Motion to Strike False Statements (7/2/2024)
3. ****Discovery still outstanding**** — Manning never responded to discovery; Motion to Compel pending since 5/6/2024
4. ****Ignores fraud claims entirely**** — Bennett alleged fraud in the inducement of relinquishment; order doesn't address fraud
5. ****Misstates legal posture**** — says rights "terminated in 2013" but adoption was never completed and cause dismissed in 2019
6. ****Treats civil tort claims as criminal prosecution**** — conflates Bennett's civil complaint with criminal authority

****Order Denying Motion to Strike (July 2, 2024):****

- "Plaintiff's Motion to Strike False Statements and Incorporation of New Evidence is DENIED"
- "Plaintiff's Motion for Sanctions is DENIED"
- No findings. No explanation. Same judge (Hawk). Same case.

VIII. THE INVERTED BURDEN OF PROOF – UNIFYING DUE PROCESS THEORY

****Core Thesis:**** Across every level of this litigation, mandatory procedural protections were systematically inverted – requiring the indigent pro se father to carry burdens that the rules assign to opposing parties and courts. This is not a series of isolated errors. It is a structural pattern of due process violation.

A. Summary Judgment Standard Inversion (CR 56)

****Legal Standard:**** CR 56(c) – view evidence in light most favorable to nonmoving party; deny summary judgment if genuine issue of material fact exists. **Frazier v. State**, 81 Wn. App. 1 (1996): "All reasonable inferences must be drawn in favor of the nonmoving party."

****The Inversion:**** Court treated Manning's "11-year silence" narrative as undisputed fact despite Exhibit A (admitted December 8, 2025) proving the exact opposite – 2010-2011 phone calls, June 12, 2011 visit Manning herself filmed, 2012-2015 recordings and gifts Manning acknowledged receiving. Court admitted Exhibit A, then ignored its contents. By resolving this factual dispute in favor of the moving party, the court required Bennett to prove Manning's representations false, rather than requiring Manning to prove the absence of genuine factual disputes.

B. Failure to Enforce Initial Burden of Production

****Legal Standard:**** **Young v. Key Pharmaceuticals**, 112 Wn.2d 216 (1989) – moving party must first demonstrate the absence of a genuine issue of material fact before burden shifts.

****The Inversion:**** Manning's motion relied on a sworn Response containing internal contradictions ("never made any attempt to contact" on p.2 vs. "one or two letters" on p.6). Motion to Compel discovery was pending since May 6, 2024 – Manning had produced zero discovery responses. Court granted summary judgment despite Manning's failure to meet her initial burden and despite preventing Bennett from obtaining evidence to rebut false claims through the discovery process.

C. De Novo Review Inversion (Appellate Level)

****Legal Standard:**** RAP 10.3 – appellate courts review summary judgment de novo.

****The Inversion:**** Court of Appeals stated it would conduct de novo review (Opinion p.3) then applied procedural bar due to missing transcripts (Opinion p.4, FN 1). The missing transcripts were a direct product of the trial court's wrongful denial of indigency funding – the very error Division One had already reversed in **Bennett v. Manning**, 84951-4-I (2023). The court created the record gap through its own procedural violation, then penalized Bennett for the gap it created.

D. CR 8(d) Admission Inversion

****Legal Standard:**** CR 8(d) — averments in a pleading to which a responsive pleading is required are admitted when not denied.

****The Inversion:**** Court ordered Manning to respond by December 1, 2025. Manning filed nothing. CR 8(d) mandates that undenied averments are deemed admitted. Court ignored this mandatory rule and continued ruling in Manning's favor — treating the non-responsive party's silence as if it had no legal consequence while holding the compliant party to every procedural technicality.

E. The Pattern

Each inversion follows the same structure: a mandatory rule assigns a burden or protection; the court ignores the rule; the effect falls on Bennett. This is not discretionary error — these are "shall" rules with no judicial discretion. The pattern is consistent across trial court (Hawk), commissioners, and the Court of Appeals panel. It constitutes structural due process denial warranting Supreme Court review.

****Petition Lead Argument:****

***Issue 1:** Whether the courts below committed structural due process violations by systematically inverting summary judgment burdens in violation of CR 56 and established precedent.*

Supporting points: (1) Factual dispute resolution error — resolved "11-year silence" in movant's favor despite contrary admitted evidence; (2) Initial burden shifting error — failed to require movant to meet initial burden under **Young**; (3) Procedural bar subversion — used indigency-created record gap to avoid de novo review; (4) Mandatory admission ignored — disregarded CR 8(d) admissions from non-compliance.

IX. DEPLOYMENT STRATEGY

A. Petition for Review (WA Supreme Court) — Deadline ~Feb 25, 2026

****Lead with the Inverted Burden framework (Section VIII above).**** This becomes Issue 1 — the structural due process argument that subsumes individual errors into a cognizable pattern.

Three supporting issues:

1. ****Published precedent violation**** — Division One violated its own holding in 84951-4-I regarding indigency/transcript funding
2. ****ER 201(d) mandatory language pattern**** — Nine judicial notice requests ignored across multiple proceedings; "shall" means mandatory

3. ****Collateral estoppel from moot DVPO**** – Gass's contradictory filings (civil evidence "not relevant" to DVPO on 6/21, then DVPO adjudicated "all" civil issues on 6/28) expose the logical impossibility

B. Federal § 1983 Complaint (9th Circuit)

Both tables as exhibits. Claims:

- § 1983 Due Process violations (default judgment without hearing/counsel; summary judgment with discovery outstanding)
- § 1985(3) Conspiracy (Manning, Kelly, Hollowell – coordinated action to deprive parental rights)
- Kelly's admission + chat logs = direct evidence of agreement under FRE 801(d)(2)(E)

C. WSBA Complaint (Gass/Hollowell)

- ****Gass:**** Table 1 rows 13-14 (contradictory representations within 7 days) = RPC 3.3 (candor to tribunal); Table 1 row 8 (preparing internally contradictory sworn statement)
- ****Hollowell:**** Table 1 row 4 (submitting findings with mutually exclusive checked boxes – "abandoned" AND "threaten to remove")

D. CR 60(b) Motion to Vacate 2008 Judgment

- Table 1 rows 1-4 + Table 2 row 1
- Default judgment against incarcerated person based on findings disproven by petitioner's own sworn declaration filed 9 days earlier
- CR 60(b)(4) void judgment (no jurisdiction – due process violation)
- CR 60(b)(3) fraud upon the court (internally contradictory findings, manufactured "abandonment" narrative, chat logs showing coercion)

X. GASS EMAIL EVIDENCE – ACTUAL KNOWLEDGE AND SPOILIATION

A. Discovery Exchange Proving Gass Received Video Evidence (Jan-Feb 2024)

****Source:**** Email chain between Bennett and Gass, Case No. 23-2-11352-7

Date	From	Content
-----	-----	-----
1/30/2024	Bennett	Sends exhibits_digital_TB.zip
1/31/2024	Gass	"Please send your exhibits in a non-zip format"
2/1/2024 1:32 PM	Bennett	Sends Google Drive link with video and discovery: "The video itself is too large to send via email"

| 2/5/2024 11:41 AM | Gass | "I don't have access to this. You will need to either allow access or send me a thumb drive." |

| 2/5/2024 | Bennett | "Access should be fixed." |

****Significance:**** Gass personally engaged with the discovery — requesting format changes, requesting access. She received the June 12, 2011 visit video, photos, and Exhibit A no later than February 5, 2024. Summary judgment was June 28, 2024 — nearly five months later. She cannot claim ignorance.

B. Bennett Notifies Gass of Document Fraud (April 9, 2024)

****Source:**** Email from Bennett to Gass, approximately April 9, 2024

Bennett wrote: "As you list your office to be representing Kelly Jovanovich concerning these matters. I am writing this as a courtesy to her; I thought her a liar, and I was mistaken all these years. Please inform Ms. Jovanovich that as of 04/09/2024 I have the evidence to prove her claim; that Mrs. Manning falsified a court document material in the unlawful deprivation of her parental rights. The document was prepared by O.W. Hallowell & Associates, and subsequently altered by Mrs. Manning prior to filing, in a manner constituting fraud, using the law firm's paperwork..."

****Gass's response:**** Did not deny the allegation. Did not report to the court. Scheduled a meeting for 4/17/2024 at 1pm through her legal assistant (Yamilet Desiderio).

****RPC 3.3(b) violation:**** Gass was informed in writing that her client had engaged in fraudulent conduct related to the proceeding using her firm's documents. She took no remedial measures. She moved for summary judgment two and a half months later based on the very narrative built on those documents.

C. Ring Camera Spoliation — Gass Admits Destruction (Discovery Emails)

****Source:**** Email exchange between Bennett and Gass regarding video production

Bennett challenged the produced video: "The clip offered was taken by a cellular phone on low quality settings, looking at a monitor that was playing the video. The video was taken on 07/09/2022 at 9:02pm according to its metadata, which is nearly a month after the original."

****Gass's admission:**** "We sent you the only video my client has. ****Her system deletes videos every 30 days.**** The only way she knew how to preserve the video was to record it on her cell phone."

****What Gass admitted:****

1. The original Ring camera footage was destroyed
2. Manning's system automatically deletes after 30 days
3. Manning selectively preserved only 93 seconds by recording her monitor with a phone

4. The produced video was a secondary recording, not original footage

****Why this is spoliation:****

- Manning filed the DVPO petition and had the first hearing on 7/1/2022 — creating a preservation duty
- The June 12, 2022 incident footage would have shown the complete encounter
- Manning extracted only the portion supporting her narrative
- Manning cut out: herself, Bennett's wife and children, her remarks to Bennett's daughter, the moment she told Bennett to come to the door
- The metadata (7/9/2022) shows she made the recording nearly a month after the incident — she had time to review and select
- The DVPO was granted based partly on this curated, spoliated evidence

Bennett's response documented what was cut: "She cut out herself publicly slandering me. She cut out the nasty remarks she made to my daughter... She even cut out the scene where she told me to come to the door, and that I had 30s to speak to Tim! I did NOT approach her porch until SHE told me to, and I was NOT being aggressive."

XI. AUTHENTICATION REQUIREMENTS

| Evidence | Authentication Method |

|-----|-----|

| Kelly Facebook screenshots (2022) | Declaration from Jessica Bennett under penalty of perjury; OCR extraction; FRE 801(d)(2)(E) co-conspirator statement |

| MSN Chat logs (2008) | John Manning's email header (adubbsworld@hotmail.com); forwarded to Melvina; self-authenticating as party admission |

| Communication Agreement | Court file, 13-5-00050-3 — judicial notice under ER 201 |

| 2008 Findings/Declaration | Court file, 08-3-03956-4 — judicial notice under ER 201 |

| 2013 Relinquishment | Court file, 13-5-00050-3 — judicial notice under ER 201 |

| Manning's 2023 Response | Court file, 23-2-11352-7 — judicial notice under ER 201 |

| Manning/T.B. DVPO Declarations | Court file, 22-2-09380-3 — judicial notice under ER 201 |

| Video (June 12, 2011) | Declaration identifying video; Manning filmed it (party admission) |

| Published opinion 84951-4-I | Published appellate decision — self-authenticating |

XII. KEY QUOTES INDEX

****For quick reference — exact quotes from source documents:****

| Quote | Speaker | Source | Significance |

|-----|-----|-----|-----|

| "he is never to see Tim" | Kelly Jovanovich | FB 11/25/2022 | Confirms permanent exclusion arrangement |

| "Mel and John are keeping Tim from me and I still have rights" | Kelly Jovanovich | FB 11/25/2022 | Manning excluding even cooperating conspirator |

| "calling his son on the telephone a couple times per week" | Manning Declaration | 11/26/2008 ¶4 |

Disproves "abandonment" found 9 days later |

| "Both parents threaten to remove child from State of Washington" | Findings of Fact | 12/5/2008 p.5 |

Contradicts "abandonment" in same document |

| "never made any attempt to contact" | Manning Response | 9/19/2023 p.2 | Contradicted by "one or two letters" on p.6 of same filing |

| "one or two letters during the roughly 4 years he was in prison" | Manning Response | 9/19/2023 p.6 | Admits contact while claiming none |

| "i told mom to drop it and i will sign him over till i get to wa" | Zack (MSN chat) | 6/2/2008 | Shows duress – sign or face prison |

| "the plan is finalized" | Kelly (MSN chat) | 6/2/2008 | Establishes pre-existing conspiracy |

| "we did this to our self we need to clean up our acts" | Kelly (MSN chat) | 6/2/2008 | Kelly acknowledges joint responsibility |

| "mom has to realize this is about tim and my life, she can have her way without fucking me over" | Zack (MSN chat) | 6/2/2008 | Shows Manning had leverage through probation/prison threat |

| "not legally enforceable unless... set forth in a written court order signed by a judge" | Communication Agreement | 2013, §1.1 | Agreement used to induce relinquishment was unenforceable by its own terms |

| "We reverse and remand" | Div. One per curiam | 84951-4-I, 4/17/2023 | Published precedent subsequently violated by same court |

| "Please send your exhibits in a non-zip format" | Gass email | 1/31/2024 | Proves personal engagement with discovery containing video |

| "I don't have access to this" | Gass email | 2/5/2024 | Proves she attempted to access video discovery link |

| "Her system deletes videos every 30 days" | Gass email | Discovery, 23-2-11352-7 | Admits destruction of Ring camera footage during litigation |

| "The only way she knew how to preserve the video was to record it on her cell phone" | Gass email | Discovery, 23-2-11352-7 | Admits 93-second clip is secondary recording, not original |

| "This evidence is related to that case and not relevant to this case" | Gass, SC filing | 6/21/2024, 102950-1 p.4 | 7 days before arguing DVPO adjudicated "all" civil issues |